

Defendant's arguments relating to alter ego and the economic loss rule. Plaintiff may file and serve an amended complaint within 10 days of entry of this order. (Code Civ. Proc., §472b; California Rules of Court, rule 3.1320(g).)

As stated above, the Court has disregarded the petition to compel arbitration that was not properly brought with the instant demurrer, without prejudice to Defendant subsequently bringing a petition to compel arbitration that complies with the requisite legal requirements.

13. 9:00 AM CASE NUMBER: C25-02400
CASE NAME: JOVANATHAN CLARK VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond, Richmond Police Department, and Sergeant Savannah Stewart (collectively, "Defendants")'s Demurrer. The Demurrer relates to Plaintiff Jovanathan Clark ("Plaintiff")'s Complaint filed on August 21, 2025, for (1) False Arrest/False Imprisonment (Complaint, ¶¶ 19-22); (2) Defamation (Complaint, ¶¶ 23-26); (3) Negligent Infliction of Emotional Distress (Complaint, ¶¶ 27-30); and (4) Intentional Infliction of Emotional Distress (Complaint, ¶¶ 31-34). Plaintiff also asserted a claim for Negligent Investigation (Gov. Code §§ 815.2, 820) against the City and the Police Department. (Complaint, ¶¶ 35-38.).

Defendants demur to Plaintiff's Complaint on several grounds including failure to comply with the mandatory claim presentation requirements of the Government Claims Act, improper naming of a non-existent legal entity, sovereign immunity, and failure to allege a statutory basis for liability.

For the following reasons, **the Demurrer is sustained in its entirety with leave to amend and the Richmond Police Department is stricken as a defendant.**

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff's counsel by email and telephone. (Gilbert Decl. at ¶ 3.) However, the parties were unable to reach an agreement. (Gilbert Decl. at ¶ 3.)

Request for Judicial Notice

Defendants request the Court take judicial notice of three documents: Exhibit A, the Declaration of City of Richmond Deputy City Clerk Pamela Christian; Exhibit B, a letter from Contra Costa County Risk Management Department to Dylan Hackett, Plaintiff's attorney, concerning the Government Code claim he submitted, dated June 17, 2025; and Exhibit C, Notice to Claimant sent to Plaintiff's attorney, Dylan Hackett, from the Board of Supervisors for Contra Costa County, concerning Plaintiff's Government Code claim to the County, dated July 8, 2025.

Defendants rely on *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363 and *Fowler v. Howell* (1996) 42 Cal.App.4th 1746 in support of judicial notice of these records.

In *Fowler*, the trial court and the Second District Court of Appeal both took notice of a declaration of a

state employee familiar with the records of the Board of Control who searched and concluded that the records of the State Board of Control did not contain a claim filed by Petitioner. (*Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752-1753; citing Evid. Code §§ 452(c), 459.) In *Gong*, the Court noted, “[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance.” (*Gong, supra*, 226 Cal.App.4th at p. 376.)

Accordingly, the Court takes judicial notice of Exhibit A. While Plaintiff argues the judicially noticed materials do not conclusively negate compliance (Opp. at 3:7), that is not the case. Under *Fowler* and *Gong*, the Court may take judicial notice that the public records from Defendant City of Richmond do not contain a claim from Plaintiff.

Exhibits B and C are both official documents and records of a state agency, because both documents are communications from Contra Costa County to Plaintiff regarding the claim he submitted to the County.

In sum, the Declaration of City Clerk Pamela Christian, the letter from Contra Costa County’s Risk Management Department, and the Notice to Claimant from the Contra Costa County Board of Supervisors are properly subject to judicial notice pursuant to Evidence Code section 452, subdivisions (b), (c) and (h), and section 453, which provide that courts may take judicial notice of a public agency’s regulations and official documents. (*In re McDonnell’s Adoption* (1947) 77 Cal.App.2d 805, 808; *Clark v. Patterson* (1977) 68 Cal.App.3d 329, 334, n. 5; *Longshore v. Ventura County* (1979) 25 Cal.3d. 14, 24-25 [finding that it is appropriate to take judicial notice of county salary ordinances].) Moreover, in accordance with Evidence Code section 452, subdivisions (b), (c) and (h), and Evidence Code section 453, courts routinely take judicial notice of the official records of State agencies. (*Citizens for Jobs and the Economy v. County of Orange* (2002) 94 Cal.App.4th 1311; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471.)

Based on the reasoning above, the court takes judicial notice of Defendant’s Exhibits A-C.

Brief Factual Background

The Complaint alleges the following facts: Plaintiff spent the evening of February 22, 2025, with a friend which included going out and drinking alcohol before returning to Plaintiff’s home to engage in further “consensual conduct.” (Complaint, ¶ 9.) Plaintiff and the friend went to sleep around 4:30 a.m. on February 23, 2025. (*Id.*, ¶ 10.) Later that morning, Plaintiff woke up and discovered that the person was unresponsive. (*Id.*, ¶ 11.) Plaintiff contacted emergency services, and officers from the Richmond Police Department responded to the home. (*Id.*, ¶ 12.) Plaintiff was arrested for rape, taken to jail, interrogated, and processed. (*Id.*, ¶¶ 13, 14.) During and after the arrest, officers, including Defendant Sgt. Stewart, canvassed Plaintiff’s neighborhood, asked his neighbors about Plaintiff’s character, and “insinuated wrongdoing.” (*Id.*, ¶ 15.) Plaintiff was ultimately not charged with a crime. (*Id.*)

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the

plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

To state a cause of action against a public entity, “the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded.” (*Richardson-Tunnell v. School Ins. Program* (2007) 157 Cal.App.4th 1056, 1061.) Plaintiff’s counsel must specifically identify the grounds for statutory liability against a public entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 CA3d 792, 802 [child injured by automobile near school only alleged “enactments” in complaint].) A plaintiff must also allege facts to show that the “cause of action lies outside the breadth of any applicable statutory immunity.” (*Soliz v. Williams* (1999) 74 Cal.App.4th 577, 585.) However, these rules do not deprive the plaintiff of the benefit of the general principle that the courts should liberally construe a complaint and generously allow amendments to cure deficiencies. (*Nestle v City of Santa Monica* (1972) 6 Cal.3d 920; *Keyes v Santa Clara Valley Water Dist.* (1982) 128 Cal.App.3d 882, 885.)

Applicable Law

As explained by the Supreme Court, “the intent of the [Government Claims Act] is not to expand the rights of plaintiffs in suits against government entities, but to confine potential governmental liability to rigidly delineated circumstances: immunity is waived only if the various requirements of the Act are satisfied.” (*Williams v. Horvath* (1976) 16 Cal.3d 834, 838.) Sovereign immunity is the rule in California. (*Sonoma Ag Art v. Dept. of Food & Agriculture* (2004) 125 Cal.App.4th 122, 125.) The Government Claims Act “permits private tort actions against government entities and [their] employees where permitted by statute, but otherwise [the entity] retains the general concept of immunity....” (*DeJung v. Superior Court* (2008) 169 Cal.App.4th 533, 543.)

Government Code § 815 establishes the general rule of limiting liability of a public entity based on its own conduct as follows, “Except as otherwise provided by statute [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code § 815(a).) Thus, direct liability for common law claims is not permissible against a public entity. (*See, e.g., Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 986; *Van Kempen v. Hayward Area Park, etc., Dist.* (1972) 23 Cal.App.3d 822, 825.) Moreover, the Court of Appeal has explained, “a public entity’s duty of care is only that specifically provided by statute.” (*Tolan*, 100 Cal.App.3d at p. 986.)

Analysis

Government Claims Act Requirement of Timely Presentation of Claim

As a condition precedent to a suit against a public entity, the Government Claims Act requires the timely presentation of a written claim for money or damages. (Gov. Code §§ 911.2, 945.4, 950.2.) The failure to present a timely claim bars the plaintiff from bringing suit. (*Phillips v. Desert Hospital District* (1989) 49 Cal.3d 699, 708; *Abelleira v. District Court of Appeal* (1941) 17 Cal.2d 280, 293; *Torres v. County of Los Angeles* (1989) 209 Cal.App.3d 325, 337.) The claim must be presented no later than six months after the accrual of the cause of action. (Gov. Code § 912.2(a).)

Likewise, Government Code section 950.2 states that any cause of action which is barred against the employing public entity is barred against the public employee. “It is settled that the filing of a timely

claim against the employing public entity is a condition precedent to a tort action against either the public entity or the employee. (Citations.)” (*Mazzola v. Feinstein* (1984) 154 Cal.App.3d 305, 310; Gov. Code § 915(c)(1).)

A plaintiff’s compliance with the Government Claims Act is an element of the cause of action and must be pled and proved. (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990.) Because compliance is an essential element of a damages cause of action, a plaintiff must allege facts showing compliance, or an excuse from compliance, or the complaint will be subject to general demurrer for failure to state a cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239; *Ovando v. County of Los Angeles* (2008) 159 Cal.App.4th 42, 65.) The reason that facts must be pled is because the failure to comply with the Government Claims Act is “fatal to the plaintiff’s legal action [requires that such a claim] must be dismissed.” (*Tietz v. Los Angeles Unified School Dist.* (1965) 238 Cal.App.2d 905, 911.)

It is also “well-settled” that plaintiffs must comply with the Claims Act even where the public entity has actual knowledge of the claim. (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 455.) Such knowledge constitutes “neither substantial compliance nor basis for estoppel.” (*Id.* [citing cases].) Though this is a Demurrer, a public entity may, through judicial notice of its own records, demonstrate noncompliance with the Claims Act. (*Gong, supra*, 226 Cal.App.4th at p. 376 [“...the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance.”]; *Fowler, supra*, 42 Cal.App.4th at p. 1752 [“The trial court also took judicial notice that the records of the State Board of Control do not contain a claim filed by Fowler concerning Howell’s allegedly false accusations...We likewise take judicial notice of these records.”].)

Demonstrating compliance with the Claims Act is a condition precedent to maintaining a cause of action, and, thus, an essential element of Plaintiff’s claims against Defendants. (*State of California v. Superior Court, supra*, 32 Cal.4th at 1240.) Therefore, when the judicially noticed facts show that Plaintiff did not comply with the Claims Act, the Court should sustain a demurrer. (*Id.*; *Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 933-934.)

Defendants contend that Plaintiff’s allegation of submission of a claim to the City of Richmond is contradicted by the judicially noticeable facts that the City’s records show no sign of a claim submitted by Plaintiff, and that Plaintiff mistakenly submitted a claim to Contra Costa County instead of to the City of Richmond. (Demurrer at p. 12: 5-12.)

Here, Plaintiff alleges that he complied with the Government Claims Act by submitting a claim to the City, which was rejected. (Complaint, ¶ 7.) However, the Court has taken judicial notice that the City does not have any record of receiving a claim from Plaintiff or from anyone on Plaintiff’s behalf. (RJN, Ex. A.) Instead, the judicially noticeable documents suggest that Plaintiff sent his claim to Contra Costa County. (RJN, Ex. B.) On June 17, 2025, the Risk Management Department for Contra Costa County sent a letter to Plaintiff’s attorney acknowledging that it had received Plaintiff’s claim form; informing Plaintiff’s attorney that the claim concerned an arrest and investigation by the City of Richmond Police Department; notifying Plaintiff’s attorney that the City is a separate legal entity from Contra Costa County; and concluding that Contra Costa County was “not the appropriate entity against which to assert your claim.” (*Id.*) The letter informed Plaintiff’s attorney to expect a formal response from the Board of Supervisors after their review on July 8, 2025. (*Id.*) Thus, on July 8, 2025, the Board of Supervisors for Contra Costa County sent a document to Plaintiff’s counsel entitled Notice to Claimant that stated, “This claim appears to concern an entity other than Contra Costa County.” (RJN, Ex. C.) It is uncontroverted that Plaintiff sent his government claim presentation to

Contra Costa County and not to the City of Richmond.

In response, Plaintiff argues that the Complaint can be amended to allege substantial compliance to plead transmission of Plaintiff's government claim to Contra Costa County to the City of Richmond amongst other possibilities to satisfy substantial compliance. (Opp pp. 5-7. The Plaintiff asserts several hypothetical possibilities: "that a written claim was timely delivered to the a City office or official other than the Clerk's office, or that notice was somehow transmitted to the City from the County, or that the City received written notice that, under the 'claims as presented' doctrine triggered a duty to give notice of any defect but failed to do so. Without passing on these possibilities, the Court notes that the assertion of these hypothetical situations in the opposition papers is insufficient to preclude the sustaining of the demurrer.

Statutory Basis Needed for Claims Against A Public Entity or Public Employee

Even assuming *arguendo* that Plaintiff had adequately alleged that he complied with the Government Claims Act, several of his individual claims fail to allege a predicate statutory basis for liability.

"[I]n California, all government tort liability is dependent on the existence of an authorizing statute or 'enactment' [citations omitted], and to state a cause of action every fact essential to the existence of a statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citations omitted.] Duty cannot be alleged by simply stating, 'defendant had a duty under the law'; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802, citing *Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 808.)

Here, Plaintiff has failed to allege any statutory basis for liability in his cause of action for (1) false arrest / false imprisonment, (2) defamation, and (4) intentional infliction of emotional distress. These claims fail for this additional reason.

Negligence/Duty to Investigate Claims

Both the third cause of action for Negligent Infliction of Emotional Distress and the fifth cause of action for Negligent Investigation are both premised on an asserted duty of care of police investigation. (Complaint ¶¶ 27-30; 35-38.)

Defendants argue that there is no right to police services, including a specific type of police response or investigation. (Gov. Code §845 ["Neither a public entity nor a public employee is liable for failure to establish a police department or otherwise to provide police protection service or, if police protection service is provided, for failure to provide sufficient police protection service."]; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) The U.S. Supreme Court also has stated that there is no constitutional right to a governmental investigation or a particular type of investigation. (*DeShaney v. Winnebago Cnty.* (1989) 489 U.S. 189, 195-196.)

There is no statutory duty identified, nor does Plaintiff allege a duty based on a preexisting relationship for either the third or fifth cause of action which are both based in negligence. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1076; *Winkelman v. City of Sunnyvale* (1976) 59 Cal.App.3d 509 [where no special relationship existed between motorist and police officers who investigated accident in which she was involved, officers had no duty to exercise due care in investigating accident].) Plaintiff does not cite any legal authority that either the third or fifth cause of action can be amended with relevant statutory authority for government duty. (Opp. at p. 8: 4-27.) As this is the first challenge to the Complaint, the Court sustains the Demurrer with leave to amend a statutory basis for Defendants' liability.

Richmond Police Department is Not a Proper Party

Finally, Plaintiff asserts all his causes of action against both the City and the Richmond Police Department. (Complaint, ¶¶ 19-38.)

Defendants take the position that Plaintiff has sued a non-existent legal entity because the Richmond Police Department is not a statutorily recognized public entity that is subject to suit and no cause of action can lie against a party who does not have the legal capacity to be sued. (Demurrer at p. 17: 2-3.) Furthermore, Defendants argue that Plaintiff's claims against both the City and the Richmond Police Department are redundant as they rest on identical theories of liability. (Demurrer at p. 17: 3-4.)

Plaintiff's opposition essentially concedes this point stating that he "does not oppose narrowing the caption to reflect the City of Richmond as the proper municipal defendant, with the understanding that all references to the Richmond Police Department are treated as references to the City and its police department as a subdivision." (Opp. at p. 10: 5-12.)

Because the Richmond Police Department is not a proper party, and because the Plaintiff does not materially object to their dismissal, the Court *sua sponte* strikes the Richmond Police Department as a defendant. (Code Civ. Proc, § 435-37 [the trial court is within its authority to bring a motion to strike sua sponte, i.e., "at any time in its discretion, and upon terms it deems proper."]; see also *Lodi v. Lodi* (1985) 173 Cal.App.3d 628, 631 [upholding trial court order striking and dismissing a complaint entirely on the trial court's own motion].)

Conclusion

For the reasons explained above, **the Demurrer is sustained in its entirety with leave to amend and the Richmond Police Department is stricken as a defendant.**

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-00152
CASE NAME: DEANDRANAE JONES VS. DAVE & BUSTER'S OF CALIFORNIA, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY: DAVE & BUSTER'S OF CALIFORNIA, INC.
TENTATIVE RULING

The Court is missing the Declaration of Breana Burgos, which is described in the moving papers and does not seem to be in Odessey. The proof of service reflects it was served on Plaintiff. The court requests a copy to be filed with a courtesy copy emailed to the department.
The hearing will be moved to next Friday, February 20, 2026 at 9:00 a.m.